

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NO. 75N98026R00067	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED	PAGE 1	OF 3	PAGES
	IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO. 7376826	6. PROJECT NO. C116635
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7. ISSUED BY National Institutes of Health Office of Logistics and Office of Administration 6011 Executive Blvd Rockville, MD 20852-3804	CODE OD/OLAO-0A	8. ADDRESS OFFER TO Brian Baek Office of Acquisition & Logistics Management National Institutes of Health
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9. FOR INFORMATION CALL	a. NAME BRIAN BAEK	b. TELEPHONE NO. <i>(Include area code) (NO COLLECT CALLS)</i> +1 301 435 1604
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SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

Please see the attached Statement of Work and the supporting documents for additional information regarding the project.

In accordance with FAR 36.204, the estimated magnitude of this construction project is between \$1,000,000 and \$5,000,000. This range is provided for informational purposes to assist offerors in preparing proposals.

11. The contractor shall begin performance within <u>300</u> calendar days and complete it within <u>0</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☐ mandatory ☒ negotiable. <i>(See _____).</i>
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12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO	12b. CALENDAR DAYS 10
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13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1630 *(hour)* local time _____ (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE NO. (Include area code)
16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
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AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u>1</u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print) BRIAN K. BAEK
30b. SIGNATURE	31b. UNITED STATES OF AMERICA BY
30c. DATE	31c. DATE

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	75N98026R00067	PAGE 3 OF 3
NAME OF OFFEROR OR CONTRACTOR		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
1001	Delivery: 300 Days After Notice to Proceed Delivery Location Code: BLDG 13, 2C, BETHMC Bldg 13, 2nd Floor, Wing C, Bethesd BLDG 13 2nd Floor, Wing C Bethesda MD 20814 US Period of Performance: 05/25/2026 to 03/21/2027 C116635 - This project is to implement a long-term measure to stop water infiltration to the interior by removing the existing roofing and waterproofing and installing new roofing, and waterproofing on the below grade roof, walls, and foundation with new foundation/subsurface drainage and surface drainage. CO - Brian Baek COR - Mohammed Biswas Delivery To: 1E09/Sherrell FREEMA Product/Service Code: Y1JZ Product/Service Description: CONSTRUCTION OF MISCELLANEOUS BUILDINGS Period of Performance: 05/25/2026 to 03/21/2027				

STATEMENT OF WORK
CONSTRUCTION SERVICES
BUILDING 31B
April 23, 2026

PROJECT TITLE: C116635.ORF.31B NEW ROOFING AND WP OF STRUCTURE BELOW GRADE
LOCATION OF WORK: Building 31B Below Grade Structure

1. **BACKGROUND:** There have been occasional incidences of water infiltration from the roof and walls of the Fitness Center area at the B4 level of Building 31-B Wing, mostly towards the south exterior wall. This extended portion of the building 31B roof over the Fitness Center area is approximately 6 feet below grade. The portion of the building that is affected by water leak has 60 years-old below grade original roofing and waterproofing. There are signs of water infiltration from the roof and down the south exterior wall of the Fitness Center in B4 level. This project is to implement a long-term measure to stop water infiltration to the interior by removing the existing roofing and waterproofing and install new roofing, and waterproofing on the below grade roof, walls, and foundation with new foundation/subsurface drainage and surface drainage.
2. **SCOPE OF CONSTRUCTION SERVICES**
The General Contractor is referred to as the contractor.
 - 2.1. **Construction Documents:** The stamped and signed permit drawings and specifications, herein referred to as 'construction documents', are provided as an Enclosure. This project involves demolition, modification, new construction work as required by the construction documents to accomplish the work for removal of the existing waterproofing/dampproofing from the below grade construction (roof, wall, foundation) extended between the loading dock and building 31C and replace with new waterproofing and exterior envelope treatment for example insulation and air-water barrier, and other related work. The project also include work related to existing and new drainage utility systems, tree removal, exterior stair and masonry work at retaining wall reconstruction as indicated on the construction documents. Construction work shall be in full conformance with the construction documents and any deviation deemed necessary must be brought to the attention of the CO/PO (Contracting Officer/Project Officer) immediately for prior approval.
 - 2.2. **Period of Performance:** This project is to be completed within three hundred (300) **workdays** from the Notice to Proceed date issued by the CO. If there is a project schedule delay, that is not the fault of the Government, the Contractor shall provide a **schedule recovery plan** to maintain the original project schedule or amendments approved by the CO at no cost to the government.
3. **CONSTRUCTION SERVICES** - The contractor shall provide all material, labor, equipment, and supervision as necessary to complete the construction of this project. The project scope as defined above must be accomplished in the following tasks:
 - 3.1. **Construction:** Perform all work as indicated in the approved construction documents. The contractor shall engage and provide technical manpower, expertise, and other resources necessary for a sustained and steady work progress, to meet major milestones and interim deadlines.

The contractor shall provide safe access to construction site and collaborate with all stakeholders including the Construction Administration team, Decommissioning/Commissioning team, SME inspections, Quality Control inspections, FAR/Labor compliance inspection and interview and other Government inspections, for the duration of the project.

The contractor shall inform the PO/CO immediately of any hazard, accident, or unusual circumstances onsite. If the PO/CO cannot be reached then inform the NIH Police.

3.2. General Requirements:

- 3.2.1. The contractor shall have daily sign-in/sign-out sheet available for inspection onsite.
- 3.2.2. The contractor shall be responsive to and shall take necessary measures for potential risks and mitigation, hazards, fall protection, extreme weather conditions and safety of staff and others.
- 3.2.3. The contractor shall comply with Division 01 Specification requirements including specification section 015950 for Severe Storm Plan requirements.
- 3.2.4. The contractor shall secure and protect all items in place to ensure they are not air-borne in high wind and protect the site from environmental damage.
- 3.2.5. The contractor shall install onsite temporary signage including for Life Safety, egress, and emergency information.
- 3.2.6. The contractor shall ensure proper PPE for staff and hold daily safety tool talks prior to work onsite and remind the staff to maintain proper conduct and not use foul language or not play very loud music onsite.
- 3.2.7. The contractor shall comply with OSHA requirements to provide adequate lighting at work areas, provide toilet facilities and drinking water onsite.
- 3.2.8. The contractor shall stack materials onsite per manufacturer's recommendations. Damaged and discarded items shall be promptly removed from site.
- 3.2.9. The contractor shall keep the construction site safe, clean and tidy at all times. No food or drink (except water) allowed on site. Lunch break at appropriate locations. Trash placed in approved receptacles.

3.3. Safety: The contractor shall comply with all applicable safety requirements listed on the Division of Occupational Health and Safety (DOHS) website. Construction work shall not begin until the Accident Prevention Plan has been approved by the Government. The DOHS website for safety information is <https://www.ors.od.nih.gov/sr/dohs/YourRole/Pages/Contractor-Safety-Materials.aspx#deliver>

3.4. NIH Security Requirements: Coordinate with the NIH Division of Police (DP), Division of Physical Security Management (DPSM), and Division of Personnel Security and Access Control (DPSAC) as needed to clarify and implement NIH security requirements, which include but are not limited to those listed below:

- 3.4.1. Badging requirements: The contractor shall coordinate with the PO for campus access and staff badging, and comply with all requirements.
- 3.4.2. NIH Policy Manual 1381 Physical Security Project Requirements for NIH Owned and Leased Facilities are found here: <https://policymanual.nih.gov/1381>.
- 3.4.3. After Hours access requirements: The contractor shall coordinate with the COR and NIH Police to obtain a stamped/signed "Police Permit" for work required outside of NIH Staff General Working Hours of 6 a.m. to 6 p.m. See the Division 1 Specifications Work Restrictions section for more information on work hours. The contractor shall secure access to the project site during after-hours.

3.4.4. Contractor shall comply with DPSM Physical Security Policy and Design Requirements:

- PDR Appendix B, Electronic Locking Devices (*Card Readers*)
- PDR Appendix C, *Security Wiring*
- PDR Appendix J, *Use of Powder Actuated Tools*
- PDR Appendix G, *Photographing Filming and Video Recording* at NIH.

3.4.5. Contractor shall coordinate with the PO to obtain the NIH hardware specifications and standards (DRM Section 4.2: Doors) for additional requirements issued by the NIH Locksmith Department for door lock core replacement requirement. Locksmith Shop is located in Building 13, Room 1405 or contact by email at locksmith@mail.nih.gov.

3.5. Noisy Work Hours: Typical noisy work hours are prior to 7:00am and after 6:00pm, but may vary. Coordinate actual noisy work hours with the Project Officer to obtain prior authorization. The Contractor may have to schedule noisy work for during the early morning hours, evening hours or weekend hours.

3.6. Project Management: The contractor shall appoint a qualified and experienced Project Manager (PM) to manage this project and be the Government's single point of contact for the duration of the project. The PM shall be responsible for quality management and ensuring conformance with the division 01 specification for all work performed in the project. The PM shall coordinate with the government's construction administration team for their post design services.

3.7. Construction Schedule:

3.7.1. The schedule type for this project will be (Gantt Chart, MS Project, Primavera, etc.) or as agreed to by the Contractor and the CO. Schedule type shall be appropriate to the size, type and complexity of the project.

3.7.2. The schedule shall contain, as a minimum, the major milestones as agreed by the CO, significant features of work, start date, finish date, activities with durations (not to exceed 20 calendar days except for procurement), cost, percent complete, and predecessors.

3.7.3. Contractor shall submit a cost-loaded schedule with separate line item for each significant activities within Ten (10) workdays from date of award for review and approval of the CO.

3.7.4. The contractor shall coordinate with the PO for delivery of Government Furnished Contractor Installed (GFCI) items to incorporate into the updated schedule as agreed by the CO.

3.7.5. The Contractor shall review the schedule at bi-weekly meetings identifying actual completed work and discuss potential delays with revised forecast dates as agreed by the CO and submit a schedule recovery plan for work items that may not finish on the last approved scheduled date.

3.7.6. Changes to the approved schedule or changes to the Period of Performance (PoP) must be approved by the CO.

3.7.7. Contractor shall provide the CO with an updated schedule within five (5) workdays after the CO has agreed to the changes.

3.8. Meetings: The contractor shall provide for and conduct meetings to be held on campus or web conference. Prepare and submit meeting minutes in accordance with construction specifications.

3.8.1. Pre-Construction Kickoff Meeting: Attend a pre-construction kickoff meeting within two (2) weeks after award. The purpose of this meeting is to discuss and develop a mutual understanding concerning the schedule and administrative work. Assume the duration of the pre-construction meeting will be one (1) hour held virtual online on TEAMS or meet onsite as agreed by the PO.

3.8.2. Progress Meetings: Provide for and conduct bi-weekly progress meetings held on campus or virtual web-conference using TEAMS. As a minimum, provide an agenda, a 2 or 3 weeks look ahead schedule, a list of outstanding and upcoming RFIs, a list of outstanding and upcoming

submittals, and the approved meeting minutes from the previous meeting before each progress meeting. Assume the duration of each progress meeting will be one (1) hour. Contractor shall send out TEAMS invite for the meeting, prepare and distribute meeting agenda and minutes.

- 3.9. Photographic Documentation:** The contractor shall document Before and After condition photos, and weekly progress photos to send to the PO.
- 3.10. Utility Shutdowns:** The Contractor shall endeavor to provide a list of necessary utility outages needed at the beginning of the construction project in order to tie in new utilities during the project. This will provide the Division of Facilities Operation and Maintenance (DFOM) sufficient time to assess the impact of the outages, locate and test shutoff valves and other fixtures, and allow affected building occupants to plan their research around the shutdown schedule. The further advance the shutdown request the better, but **shall be no less than four (4) weeks from the desired shutdown date**. There is no guarantee that the requested date will be approved, and the Contractor shall work with the Project Officer (PO) and DFOM to negotiate another date.
- 3.11. Flood Mitigation:** Flooding of workspaces is of critical concern particularly in clinical and laboratory areas. Contractor is to maintain Shop Vacuums at work areas in the event of a flood, other water leaks or spillage to prevent further water damage. Contractors shall have a Fire Sprinkler Shut off tool readily available on hand in the event work involves live sprinkler heads or the sprinkler is accidentally activated. Fire sprinkler leakage and other sources of flooding shall be discussed at the Pre-Construction meeting and water shutoff valves will be identified on individual floors. Contractors will train workers at their Safety Meetings on the location of these valves. Contractors should post valve location drawings and or label such valves. Any significant water leakage shall be reported to the Project Officer immediately upon discovery.
- 3.12. Request for Information (RFI):** Unless an existing RFI form is already part of a Government or Contractor provided construction management software, use the RFI form provided as an Enclosure when formally seeking information or clarification after award. The contractor shall submit RFIs to the PO for any field conditions that may require additional work, to initiate a change order process.
- 3.13. Construction Administration (CA):** The Contractor shall collaborate and coordinate with the Government's construction administration (CA) services team for the duration of the project to address and resolve all issues notified by the CA team. The contractor shall assist and cooperate with the CA team as necessary.
- 3.14. Commissioning (Cx):** The Contractor shall collaborate and coordinate with the Government's commissioning agent (CxA) for the duration of this project and resolve any conflicts as applicable. The contractor shall review the Cx Plan and provide review comments to the PO within 5 calendar days. The contractor shall coordinate with the CxA to integrate key Cx activities into their construction schedule. The contractor shall coordinate with the Commissioning and Acceptance Plan by the CxA. The contractor shall follow Test Procedures and checklists provided by the CxA. The contractor shall collaborate with the CxA for QC requirements and Testing procedures. The contractor shall coordinate their test schedule with the CxA.
- 3.15. Construction and Demolition Waste Contract Requirements:** The Contractor shall comply with the NIH Division of Environmental Protection's requirements pertaining to dumpsters, recycling, chemical and hazardous waste, and universal waste as described in the following link:
https://orf.od.nih.gov/EnvironmentalProtection/WasteDisposal/Documents/Construction%20and%20Demolition%20Waste%20Contract%20Requirements_508.pdf

3.16. BIM and CADD: Using Building Information Modeling (BIM) is not required but if the contractor chooses to use BIM process instead of Computer Aided Design and Drawings (CADD) in this project then it shall be in accordance with the US National BIM Standard version 3 (NBIM-US V3) which can be downloaded at <https://www.nationalbimstandard.org/>.

- 3.16.1. BIM Project Execution Plan (PxP) – If BIM is used in this project then the contractor shall submit a BIM Project Execution Plan for Revit to the PO as part of the submittals package. The NIH is embracing Building Information Modeling (BIM) as a pillar of its built environment. To that effect the NIH is adopting and implementing the consensus of standards presented and referenced in the National BIM Standard – United States (NBIMS-US) by the National Institute of Building Sciences building SMART alliance to guide the NIH’s BIM implementation and execution. To successfully implement BIM on this project, the NIH has developed a detailed BIM Project Execution Plan (PxP) provided as an Enclosure. This living document shall not supersede contractual requirements, but rather enhance the existing requirements and promote collaboration, communication and understanding between all BIM stakeholders. The PxP is a template for the contractor to populate and submit as a formal submittal for review/ feedback.
- 3.16.2. The contractor shall use a live modeling, cloud-based, BIM coordination tool (e.g., ACC/Autodesk Construction Cloud, Procore, or similar). Live BIM coordination will reduce the time for overall coordination and risk of schedule delays.
- 3.16.3. The contractor shall submit Clash Detection Report to the PO for review, prior to starting the activity.
- 3.16.4. During the construction period the Contractor shall record all BIM meetings including those with subcontractors. NIH will be notified of all BIM meetings.
- 3.16.5. Models shall be delivered in Revit (.rvt) and Industry Foundation Classes (.ifc) format. The Contractor shall also convert the BIM models to a 3D PDF for required deliverables.
- 3.16.6. CADD documents shall be delivered in AutoCAD (.dwg). CAD drawings are acceptable for civil information models for site work. New or demolished elements must be modeled from the utility connection point to the user’s space as specified and/or as agreed by the CO/PO. When CAD files are used, the references must be fully bound to the sheets during final turnover. Files containing special fonts must be included with the bound file transfer. Any image files used should be embedded directly into the drawings rather than referenced externally. This includes company logos, details, maps, legends, etc. Any CAD file with multiple sheets in them must be exported and saved as separate bound files/sheets. CAD) Deliverables shall be in conformance with US National CAD standards of the version current at the time of project contract.

3.17. Construction Submittals:

- 3.17.1. The contractor shall host and manage at no cost to the government a web-based project management system, acceptable to the CO/PO, to track project documentation for record keeping, process submittals and shop drawings with particular emphasis on tracking due dates.
- 3.17.2. Submittal Schedule: Unless an existing Submittal Schedule form is already part of a Government or Contractor provided construction management software, use the Government provided template listed in Enclosure 4 to create and develop the submittal schedule.
- 3.17.3. Submittal Approval: No payment will be made for any billable construction until the associated submittals have been provided, reviewed and approved by the Government.
- 3.17.4. Transmittal Form: Unless an existing Transmittal Form is already part of a Government or Contractor provided construction management software, use the Government provided transmittal form listed in Enclosure 5 to transmit submittals.

- 3.17.5. Warranty Form: If applicable, use the Government provide warranty form listed in Enclosure 6 to create and develop the warranty schedule.
- 3.17.6. Asset Turnover Form: If applicable, update the reminder of “Asset Turnover Form” provided by the IWMS Team (iwms@nih.gov) Enclosure 7.

3.18. Asset Tagging & Labeling - Asset Information: The contractor shall complete the Asset Turnover Form data fields. The Turnover Form will be pre-filled by the IWMS Team. The Turnover Form will only contain data of assets that are tracked and maintained under the NIH IWMS inventory.

- 3.18.1. Existing assets: For existing assets being demolished, modified, or relocated, the project drawings and equipment schedules must accurately record the asset identifier (i.e., asset type abbreviation, number, and 5-digit Facility number (FAC#) if available) as seen on the equipment in the field or as identified in the Turnover Form. For existing assets where the equipment identifier is illegible, not available in the field, and not available in the Turnover Form, then a typical equipment identifier may be used per NIH drawing standards. For newly installed assets, the project drawings and equipment schedules must depict unique asset identifiers per NIH drawing standards as identified in the Turnover Form.
- 3.18.2. Physical Asset Tags: All new or replacement assets shall have a physical tag containing the unique asset identifier. Each physical tag shall be affixed to the equipment, have black or red background (red for Emergency equipment), white engraved letters at least 0.75 inches high, and be made of material suitable to sustain the environmental conditions of the equipment.
- 3.18.3. FPAA Projects: For new construction and other large projects that surpass the Federal Project Authorization and Agreement (FPAA) threshold, the Constructor may be required to apply a second physical tag in addition to the tag described above. The secondary tag is yellow and will contain additional information used by DFOM to accurately identify the assets (e.g., barcode linked to IWMS, FAC#, Service of asset, Location of asset). IWMS will provide all the necessary details for the secondary tag and have the AE/Contractor prepare and affix the secondary tags in addition to the Physical Asset Tag. The second tag will be in accordance with the ORF Asset Tag standard and include a barcode number provided by the IWMS Team.
- 3.18.4. Asset Tag and Documentation: Asset documentation including, but not limited to, equipment Operations and Maintenance (O&M) manuals and warranty information. Based on documentation size and quantity, said documents may be transferred to the PO and the IWMS Team via NIH approved digital file transfer means (e.g., Box).
- 3.18.5. POC: The IWMS Team may be contacted via email (iwms@nih.gov) through the Project Officer for any additional information needed regarding the turnover of asset data or documentation of the project.

4. PROJECT CLOSE-OUT

- 4.1 Punch List:** The final punch list will be developed at a date to be determined by the Project Officer, after the Contractor submits a written notice of substantial completion, indicating all major work has

been completed. The Project Officer may accept this notice, or reject it, pending further work to be completed.

4.2 Redline Drawings: Provide redline mark-up drawings indicating actual install conditions that deviate from construction drawings.

4.3 Operation and Maintenance Manuals: Operation and Maintenance Manuals, including Preventive Maintenance, Special Tools, Repair Requirements, Parts List, Spare Parts List, and Operating Instructions shall be delivered to the Project Officer in PDF format as a submittal.

4.4 Video Training: The tracker shall submit video training for major assets in MP4 format. Coordinate with the project officer to identify which assets require video training.

4.5 Attic Stock: Provide attic stock as required and store as directed by the COR.

4.6 Warranties: Complete the Warranty Form included with this Scope of Work and transmit as a submittal to the Project Officer.

4.7 Approved Submittals: Provide the approved submittals. Operators and Maintenance personnel will use them to perform their duties.

4.8 Potable Water System Testing: All new water systems shall be flushed out and tested (includes all sinks such as for potable use and laboratory) prior to placing the system in operational use. All system flushing and testing shall be the responsibility of the contractor. Test results shall be provided to the NIH Division of Occupational Health and Safety (DOHS) Community Health Branch (CHB) for review and acceptance. Consult NIH Facilities Development Manual SECTION 3-15: POTABLE WATER POLICY for further details.

5. GENERAL REQUIREMENTS - Comply with the following requirements, as applicable:

5.1. Fire Safety: The NIH Division of the Fire Marshal, the fire safety "authority having jurisdiction" (AHJ), as well as the Project Officer will monitor renovation and construction areas for compliance. The NIH AHJ shall approve all completed work for compliance with provisions of the National Fire Codes prior to acceptance and approval of substantial completion and beneficial occupancy of the space.

- Non-compliance with compliance checklist is sufficient cause for a "Stop Work Order".
- Refer to the NIH Policy Manual *1370 - Fire Protection and Life Safety Building Permit Process* (<https://policymanual.nih.gov/1370>).
- Refer to the Facility Development Manual (FDM) online at: <https://www.orf.od.nih.gov/Pages/default.aspx>.

5.2. Construction and Demolition Waste Contract Requirement - The Contractor shall comply with the NIH Division of Environmental Protection's requirements pertaining to dumpsters, recycling, chemical and hazardous waste, and universal waste as described in the following link: https://orf.od.nih.gov/EnvironmentalProtection/WasteDisposal/Documents/Construction%20and%20Demolition%20Waste%20Contract%20Requirements_508.pdf

5.3. Room and Directional Signage - As part of the project scope of work, room and affected directional signage will be replaced, updated, or added as necessary to ensure that it is clear and easy to

understand for all users. The architectural construction documents for the project will include a signage plan with detailed specifications, including the standards set forth by the DRM Appendix M and any specific design guidelines required by the building institute where the project is taking place. These site-specific signage standards, if applicable, will be provided by the project officer following the award of a new project task order.

5.4. Site Impact Review and Coordination System.- Submit the appropriate form with all requested information through the COR, who will utilize the web-based Site Impact Review and Coordination (SIRC) system to forward to the NIH DFS Site Coordination Team no less than twenty one (21) calendar days before the need date. The COR can provide a copy of the request forms listed below:

- NIH Site Selection Request Form is required for activities such as placement of a construction trailer, storage container, dumpster, fence, staging area, temporary signage, construction signage, etc. Refer to the NIH FDM Section 2-6 *Site Selection*.
- NIH Road Closure Request Form is required for any disruption to campus vehicular or pedestrian traffic. Refer to the FDM Section 6-11-10 F *Temporary Use of NIH Road, Sidewalks, or Parking Lots*.

5.5. Building Codes - This project shall be constructed to meet or exceed the applicable building code(s) for the location of the facility, such as: the Life Safety Code (NFPA 101), Standard for the Installation of Sprinkler Systems (NFPA 13), The American Institute of Architects Academy of Architecture for Health with the assistance from the U.S. Department of Health and Human Services (Note: The Department of Health and Human Services (DHHS) as an agency of the Government of the United States of America, derives its authority from the Congress of the United States, and is not subject to laws, ordinances, regulations established by state and local governments or authorities of a lesser jurisdiction).

5.6. Federal Regulations - This project shall be constructed in compliance with all applicable Federal Regulations including but not necessarily limited to the following: Uniformed Federal Accessibility Standards, OSHA 29CFR 1910; The National Environmental Policy Act of 1969 (NEPA); The Endangered Species Act; The National Historic Preservation Act of 1966; The Archeological and Historic Preservation Act; The Wild and Scenic Rivers Act; 40CFR Environmental which includes: Safe Drinking Water Act, Clean Air Act, Clean Water Act, Toxic Substance Control Act, Solid Waste Disposal Act, and RCRA; Executive Order 11990 (Wetlands); Executive Order 11988 (Floodplains); Executive Order 12088 (Compliance with State environmental laws); National Capital Planning Commission (NCPC) "Master Planning Regulations"; Energy Policy Act of 1992; Executive Order 13423 (Strengthening Federal Environmental, Energy, and Transportation Management), etc.

6. GOVERNMENT FURNISHED INFORMATION (GFI)

Government furnished items shall be provided to the contractor as an enclosure to the SOW.

7. ENCLOSURES:

- 7.1.** Construction Drawings and Specifications for project C116635 produced by LSY Architects.
- 7.2.** Request for Information (RFI) Form
- 7.3.** DOHS Forms
- 7.4.** Transmittal Form
- 7.5.** Warranty Form
- 7.6.** Asset Turnover Form
- 7.7.** Site Selection Request Form
- 7.8.** Road Closure Request Form

8. NIH Bethesda Campus Access and Parking:

Mass Transit is available near the NIH Visitor Center. Access to NIH Campus is secured.

Access information weblink <https://security.nih.gov/visitors/Pages/visitor-campus-access.aspx>

Parking permit is not issued for contractors but limited visitor paid parking is available on campus.

Parking information weblink <https://ors.od.nih.gov/pes/dats/parking/pages/generalinfo.aspx>

9. PROJECT CONTACTS:

Contact the PO for any safety issues or urgent matters 24/7

CONTRACTING OFFICER (Government's overall authority in all matters of this project)

Brian Baek

NIH/OD/ORF/

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PO/COR (Project Officer/Contracting Officer's Representative) As the Governments point of contact (POC) all correspondence shall be sent to the PO/COR and the CO shall be copied (cc'd).

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Section I – Contract Clauses

I.1 FAR Clauses Incorporated by Reference

- 52.202-1 -- Definitions
- 52.203-3 -- Gratuities
- 52.203-6 -- Restrictions on Subcontractor Sales to the Government
- 52.204-10 -- Reporting Executive Compensation and First-Tier Subcontract Awards
- 52.204-13 -- System for Award Management Maintenance
- 52.204-18 -- CAGE Code Maintenance
- 52.209-6 -- Protecting the Government's Interest When Subcontracting

I.2 Small Business Set-Aside Clauses

- 52.219-6 -- Notice of Total Small Business Set-Aside
- 52.219-14 -- Limitations on Subcontracting

I.3 Construction-Specific Clauses (FAR Part 36)

- 52.236-2 -- Differing Site Conditions
- 52.236-3 -- Site Investigation and Conditions Affecting the Work
- 52.236-5 -- Material and Workmanship
- 52.236-6 -- Superintendence by the Contractor
- 52.236-7 -- Permits and Responsibilities
- 52.236-9 -- Protection of Existing Vegetation, Structures, Utilities
- 52.236-10 -- Operations and Storage Areas
- 52.236-12 -- Cleaning Up
- 52.236-13 -- Accident Prevention
- 52.236-14 -- Availability and Use of Utility Services
- 52.236-15 -- Schedules for Construction Contracts
- 52.236-17 -- Layout of Work

I.4 Labor Standards (Davis-Bacon Act)

- 52.222-6 -- Construction Wage Rate Requirements
- 52.222-7 -- Withholding of Funds
- 52.222-8 -- Payrolls and Basic Records
- 52.222-9 -- Apprentices and Trainees
- 52.222-10 -- Compliance with Copeland Act
- 52.222-11 -- Subcontracts (Labor Standards)
- 52.222-12 -- Contract Termination—Debarment
- 52.222-13 -- Compliance with Wage Determinations
- 52.222-26 -- Equal Opportunity

- 52.222-35 -- Equal Opportunity for Veterans
- 52.222-36 -- Equal Opportunity for Workers with Disabilities

I.5 Bonding Requirements (FAR Part 28)

- 52.228-1 -- Bid Guarantee
- 52.228-2 -- Additional Bond Security
- 52.228-15 -- Performance and Payment Bonds—Construction

I.6 Payment & Financial Clauses

- 52.232-5 -- Payments Under Fixed-Price Construction Contracts
- 52.232-27 -- Prompt Payment for Construction Contracts

I.7 Contract Administration & Legal

- 52.233-1-- Disputes
- 52.233-3 -- Protest after Award
- 52.233-4 -- Applicable Law for Breach of Contract Claim
- 52.243-4 -- Changes
- 52.249-2 -- Termination for Convenience
- 52.249-10 -- Default (Fixed-Price Construction)

I.8 Additional Clauses

- 52.204-21 -- Basic Safeguarding of Covered Contractor Information Systems
- 52.211-10 -- Commencement, Prosecution, and Completion of Work
- 52.242-14 -- Suspension of Work
- 52.242-17 -- Government Delay of Work

Section M – Evaluation Factors for Award (LPTA)

M.1 Basis for Award

Award will be made to the responsible small business offeror that:

1. Submits a technically acceptable proposal, and
2. Offers the lowest evaluated price, and

3. Proposes a price determined to be reasonable, balanced, and not unrealistically low

M.2 Technical Acceptability Evaluation

Proposals will be rated Acceptable or Unacceptable. To be rated Acceptable, the proposal must demonstrate:

(a) Relevant Experience (Past Performance)

- Successful completion of similar construction work

(b) Key Personnel

- Qualified superintendent with relevant experience

(c) Technical Approach

- Demonstrates understanding of requirements
- Provides a feasible approach

A proposal will be rated Unacceptable if it:

- Fails any minimum requirement
- Lacks sufficient detail
- Demonstrates high performance risk

Unacceptable proposals will not be considered for award.

M.3 Price Evaluation

The Government will evaluate price for:

- Total price
- Price reasonableness (FAR 13.106-3)
- Price realism (performance risk assessment)
- Balanced pricing

M.3.1 Price Reasonableness

The Government will determine whether the proposed price is fair and reasonable using one or more of the following:

- Comparison of competitive proposals
- Comparison with the Independent Government Estimate (IGE)
- Historical pricing data

M.3.2 Price Realism (Performance Risk)

Although this is a Firm-Fixed-Price contract, the Government may evaluate whether a price is so low as to reflect a lack of understanding or create performance risk.

Indicators may include:

- Significant deviation from the IGE
- Significant deviation from other offers
- Inconsistency with proposed approach
- Omission of necessary work elements

If a price is determined to be unrealistically low, the proposal may be:

- Rated Technically Unacceptable, or
- Rejected as ineligible for award

M.4 Evaluation Method

(a) The Government will evaluate proposals using procedures in FAR 13.106-2 under the Federal Acquisition Regulation.

(b) The Government will:

- Evaluate technical acceptability (pass/fail)
- Evaluate price (including realism and balance)
- Award to the lowest-priced technically acceptable offeror

(c) The Government will evaluate proposals in order of price, starting with the lowest.

M.5 Compliance Requirements

Failure to comply with the following may result in elimination:

- Small Business Set-Aside requirements
- Limitations on Subcontracting
- Proposal submission instructions
- Requirement for reasonable, balanced, and realistic pricing